

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lily Carayannis	Team: Team # 1	CCRB Case #: 201301141	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 02/21/2013 12:05 AM	Location of Incident: Main Street Flushing 7 Train Station	18 Mo. SOL 8/21/2014	Precinct: 109
Date/Time CV Reported Fri, 02/22/2013 9:27 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 02/22/2013 9:27 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Michael Granahan	01937	934957	TB
2. POM Garry Lamour	30321	950716	TB

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Dezeria Honeywell	31762	952859	TB
2. POM Edwin Gonell	20379	950511	TB
3. POF Leslie Friday	20291	950447	TB
4. POM Haifeng Lai	31104	952960	TB
5. POM Christophe Alazraki	11753	949978	TB

Officer(s)	Allegation	Investigator Recommendation
A.POM Garry Lamour	Abuse: PO Garry Lamour stopped § 87(2)(b)	
B.SGT Michael Granahan	Abuse: SGT Michael Granahan stopped § 87(2)(b)	
C.POM Garry Lamour	Abuse: PO Garry Lamour frisked § 87(2)(b)	
D.POM Garry Lamour	Abuse: PO Garry Lamour searched § 87(2)(b)	
E.POM Garry Lamour	Abuse: PO Garry Lamour refused to provide his name and shield number to § 87(2)(b)	
F.SGT Michael Granahan	Abuse: SGT Michael Granahan refused to provide his name and shield number to § 87(2)(b)	

Case Summary

On February 22, 2013, § 87(2)(b) filed the following complaint over the Call Processing System (encl. C 1-2).

On February 21, 2013, at approximately 12:05 a.m., PO Garry Lamour, from Transit Bureau, stopped § 87(2)(b) on the subway platform in the Main Street Flushing station in Queens. The following allegations resulted from this interaction:

Allegation A-Abuse of Authority: PO Garry Lamour stopped § 87(2)(b)

Allegation B-Abuse of Authority: SGT Michael Granahan stopped § 87(2)(b)

Allegation C-Abuse of Authority: PO Garry Lamour frisked § 87(2)(b)

Allegation D-Abuse of Authority: PO Garry Lamour searched § 87(2)(b)

§ 87(2)(g)

Allegation E-Abuse of Authority: PO Garry Lamour refused to provide his name and shield number to § 87(2)(b)

Allegation F-Abuse of Authority: SGT Michael Granahan refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(g)

Mediation was offered to § 87(2)(b) over the phone on February 26, 2013 and in person on March 6, 2013. § 87(2)(b) refused to mediate this complaint.

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b), black, male, 5'6", 191 lbs., black hair, and brown eyes. § 87(2)(b)

CCRB Statement

§ 87(2)(b) provided a statement over the telephone on February 26, 2013 (encl. C 3-4). § 87(2)(b) also provided an in-person interview on March 6, 2013 (encl. C 5-11). § 87(2)(b)

On February 21, 2013 at approximately 12:05 a.m., § 87(2)(b) walked from his job four blocks to the number 7 train station at Flushing Main Street in Queens. § 87(2)(b) was wearing a grey leather coat that zips in the middle, a grey shirt, blue jeans, and a grey baseball hat. In his outer, left jacket pocket he had a pair of ear buds and in his outer right jacket pocket he did not have anything. In his inner left jacket pocket he had his cell phone. In his front left pants pocket he had dollar bills, a credit card, and his metro card. In his front right pants pocket he had lip balm. In his right rear jeans pocket he had a square, clear plastic card case about the size of an identification card with his state identification, his work identification, and a PBA Card, and his left rear pocket was empty. § 87(2)(b) had no bags at the time. As he walked

down the street he did not interact with anyone, nor did he stop to talk to anyone. § 87(2)(b) did not stop or pick anything up when he was walking to the train.

§ 87(2)(b) purchased two candy bars at a convenience store inside of the subway station. § 87(2)(b) entered the turnstile. As § 87(2)(b) was walking to the train on the platform he saw four officers, who have been identified via the investigation as SGT Michael Granahan, PO Garry Lamour, PO Dezeria Honeywell, and PO Edwin Gonell, pass by him walking toward the middle car of the train. § 87(2)(b) took a seat on the train, put his ear plugs in his ears and connected those ear plugs to his phone. § 87(2)(b) opened one of his candy bars and held the other in his hand with his phone. § 87(2)(b) saw the train conductor walk by. Besides the train conductor and § 87(2)(b) there was no one else in the train car.

PO Lamour, described as a black male, 6'0" tall, husky build, uniformed with hat, moustache, in his 40s, with a Caribbean accent, and with badge number 30321, stood at the edge of the train doors, outside of the train, to address § 87(2)(b). Approximately three minutes elapsed from when § 87(2)(b) sat down on the train to when PO Lamour approached him. PO Lamour stood at the entrance of the train door and did not enter the doors completely. PO Lamour said to § 87(2)(b) "This is the last stop, you have to get off the train." § 87(2)(b) removed his earplugs from his ears and said, "No this is not the last stop. I am going to Manhattan and this train is going to Manhattan." PO Lamour replied, "No this is the last stop." § 87(2)(b) replied, "No it is not. Look up at the board," referring to the digital sign on the platform that indicates which train will be the next to leave the station. He also said, "This train is going back to Manhattan. Thank you," and he put his earphones back in his ears.

SGT Granahan, described as a white male, 6'0" tall, slim build, in uniform with hat, no facial hair, in his early 50s, and with badge number 1937, entered the train car at the end that was farthest away from § 87(2)(b). PO Lamour entered the train car at the same time. SGT Granahan stated, "Let me see your identification." § 87(2)(b) said, "Okay." In order to remove his identification, he had to stand up. He gave SGT Granahan his identification, which was in his back right pocket, in a plastic holder. § 87(2)(b) removed his earphones and held them in his hand. § 87(2)(b) asked, "What did I do wrong?" Neither officer responded. SGT Granahan looked at his identification and said, "Get off the train." § 87(2)(b) replied, "No. I am not going to get off the train. You are going to make me miss my train." SGT Granahan repeated, "Get off the train." § 87(2)(b) replied, "No. What did I do wrong?" SGT Granahan responded, "I don't have to tell you what you did wrong." § 87(2)(b) replied, "I am not going to leave this train. You've got no right to take me off of this train." SGT Granahan responded, "If you do not get off this train I am going to physically take you off this train." § 87(2)(b) replied, "I am not leaving this train." This entire conversation took approximately three minutes. § 87(2)(b) stated that the officers did not ask him any other questions.

§ 87(2)(b)'s hands were visible during the conversation. § 87(2)(b) did not take a step toward the officers nor did he gesture with his hand. § 87(2)(b)'s hands were at stomach level. PO Lamour and SGT Granahan stepped forward toward § 87(2)(b). PO Lamour and SGT Granahan grabbed § 87(2)(b)'s jacket sleeves near his forearm. PO Lamour had one arm and SGT Granahan had the other arm and they pulled § 87(2)(b) out of the train car. Either SGT Granahan or PO Lamour said, "Put your hands up." § 87(2)(b) did. Either SGT Granahan or PO Lamour pushed § 87(2)(b) toward the column on the platform by placing a hand in the middle of his back between the shoulder blades. § 87(2)(b) moved toward the column and he held up both his hands to keep his face from hitting the column. He was handcuffed by PO Lamour. § 87(2)(b) did not try to pull away nor did he try to resist physically from being handcuffed. § 87(2)(b) had the two candy bars and his phone with the earphones attached in his hands for the entire duration of the event.

After he was handcuffed, § 87(2)(b) asked, “What am I getting arrested for?” SGT Granahan replied, “I’ll tell you when I am ready.” § 87(2)(b) asked, “Okay, you’re still not telling me what I am getting arrested for.” SGT Granahan responded, “Nobody is getting arrested here.” § 87(2)(b) asked, “Why do you have the handcuffs on?” SGT Granahan said, “It is for my protection.” § 87(2)(b) said, “I am not making any threatening moves to you. I didn’t say anything to you. He told me to get off the train and I said that the train was about to leave to Manhattan and this isn’t the last stop. That’s all I did.” SGT Granahan told § 87(2)(b) to shut up and yelled at him, “Don’t tell me how to do my job.” § 87(2)(b) replied, “I am not telling you how to do your job, but why did you stop me?” SGT Granahan said, “It looks like you have a firearm on you.” § 87(2)(b) replied, “That is bull crap. That is a lie. If it looked like I had a firearm on me, you all wouldn’t have got on the train and told me that this is the last stop and I need to leave. It would have been something bigger than that.” § 87(2)(b) did not use any profanity during the interaction. SGT Granahan did not explain where he saw the firearm or why he thought § 87(2)(b) had a firearm.

PO Lamour frisked the front and back of § 87(2)(b)’s jacket and jeans from his neck to his ankles. PO Lamour also patted the sides of § 87(2)(b)’s body, but he did not pat the perimeter of § 87(2)(b)’s waistband in particular. He was frisked a second time by PO Lamour in the same fashion as the first frisk. PO Lamour asked § 87(2)(b) what was in his right rear pocket. § 87(2)(b) said that it was his work identification. PO Lamour reached inside his pocket and took out the plastic wallet. Visible through the plastic wallet was his PBA card. PO Lamour handed the plastic wallet to SGT Granahan. SGT Granahan looked at it and asked § 87(2)(b) who gave him that card. § 87(2)(b) responded that he received it from a friend with whom he worked. PO Lamour took the handcuffs off of § 87(2)(b) and SGT Granahan said, “Okay you’re free to go.” § 87(2)(b)’s identification and the plastic card holder were returned to him.

§ 87(2)(b) said, “I need y’all’s badge numbers.” § 87(2)(b) directed that question to both officers. PO Lamour was behind § 87(2)(b) when he asked this and SGT Granahan was in front of him. SGT Granahan responded, “Yeah you can get it,” but kept walking. § 87(2)(b) quickly looked at SGT Granahan’s badge number as SGT Granahan walked away, which he remembered was 1937. He then turned and looked at PO Lamour’s badge number, which he remembered was 30321. PO Lamour did not respond to § 87(2)(b)’s request for the officers’ badge numbers. The group of officers began walking toward the back of the subway car. § 87(2)(b) walked back onto the train that had not yet left the station and sat in his original seat. The group of officers walked toward the back of the train on the platform. Soon thereafter the train left the station.

§ 87(2)(b) estimated that there were approximately eight officers in total on the subway platform at this time. PO Honeywell, who was identified via the investigation and was described as a black female, 5’6” tall, in her late 20s, in a uniform with a hat, and a slim build, and PO Gonell, who was identified via the investigation and was described as a white male, 5’8” tall, mid-40s, and a chubby build, were both present but did not interact with him in anyway. The other officers did not speak nor did they have physical contact with § 87(2)(b). The entire interaction last 15- 17 minutes.

NYPD Statements:

Subject Officer: PO GARRY LAMOUR

- *Male, black, 5’9” tall, 180 lbs., black hair, and brown eyes. § 87(2)(b) old at the time of the interview.*

- *PO Lamour was assigned to Queens Train Patrol with SGT Granahan, PO Gonell, and PO Honeywell. PO Lamour was in uniform, on foot, and he worked from 9:30 p.m. to 06:50 a.m.*

Memo Book:

At 12:00 a.m. on February 21, 2013, PO Lamour began a patrol of the Main Street Flushing 7 train station. At 12:05 a.m. one male black stopped on the northbound platform. At 12:17 a.m., a Stop, Question, and Frisk Report was prepared for Criminal Possession of a Weapon. Male was stopped because of bulge on hip. Refused to step off of the train, was loud and boisterous. Male was placed in handcuffs to prevent further confrontation. Name § 87(2)(b)

§ 87(2)(b) DOB § 87(2)(b) male, black, 5'4", 200 lbs., address § 87(2)(b)

At 12:21 a.m. resumed patrol (encl. D 6-7).

Stop, Question, Frisk Report

The Stop, Question, and Frisk Report shows that § 87(2)(b) was stopped and frisked on February 21, 2013 (encl. D 8). The duration of the stop is noted to be seven minutes. The Stop, Question, and Frisk Report shows that § 87(2)(b) was suspected of Criminal Possession of a Weapon because he was engaging in actions indicative of casing, actions indicative of acting as a look-out, and had a suspicious bulge on his waist near his right hip. The Stop, Question, and Frisk Report further shows that § 87(2)(b) was handcuffed for officers' safety, § 87(2)(b)'s safety, and overcoming resistance. The Stop, Question, and Frisk Report indicates also that § 87(2)(b) was frisked for the aforementioned reasons, inappropriate attire, furtive movements, and refusal to comply with officer's directions. The Stop, Question, and Frisk Report notes that § 87(2)(b) was not searched. After the stop, the Stop, Question, and Frisk report notes that § 87(2)(b) was nervous and aggressive.

CCRB Statement:

PO Garry Lamour was interviewed at the CCRB on May 9, 2013 (encl. D8-11).

On February 21, 2013 at approximately 12:00 a.m., PO Lamour, SGT Granahan, PO Honeywell, and PO Gonell were patrolling the 7 train station at Flushing Main Street. A Flushing bound 7 train entered the train station. PO Lamour and the other officers were on TOM duty, which meant that they would inspect the trains for indications of crimes that were known to have happened in the area. PO Lamour could not recall what types of crimes they were looking for on this date. PO Lamour noticed § 87(2)(b) inside one of the train cars moving toward one of the interior train doors that provide access to other train cars. When § 87(2)(b) noticed PO Lamour looking at him, he changed directions, walking away from the door. PO Lamour assumed that he did not go through the door because that is a violation of the MTA rules. PO Lamour was standing next to SGT Granahan, PO Honeywell, and PO Gonell. The officers did not discuss § 87(2)(b)'s actions, but they were all looking at him. PO Lamour was standing at the door of the train car nearest to § 87(2)(b). At this point, PO Lamour noticed a bulge on § 87(2)(b)'s right hip underneath his clothing. PO Lamour suspected that the bulge was a gun. PO Lamour could not recall the size, shape, or outline of the bulge. PO Lamour suspected that it was a gun, because § 87(2)(b) was "hiding it." PO Lamour observed § 87(2)(b) turn the left side of his body toward PO Lamour thus hiding his right side from PO Lamour. § 87(2)(b) sat down and covered the bulge with his arms which were folded. During his CCRB statement, PO Lamour imitated § 87(2)(b) by grabbing the lapels of his jacket and pulling it closed and pulling his jacket down over his waist. Later in the interview, PO Lamour stated that § 87(2)(b) did not have a jacket on, but a sweater that he pulled over his waistband. § 87(2)(b) did not have anything in his hands at the time.

PO Lamour stood at the train door and said to § 87(2)(b) "Good morning, could you please step off of the train?" § 87(2)(b) stated, "Good morning for what? For what? Cause I'm

black? ” PO Lamour responded, “No brother, I am just saying good morning, so we can have a conversation. I am asking you to step off the train.” PO Lamour requested that he get off the train to further question him because § 87(2)(b) had changed direction upon sight of the officers, because of the bulge on his right hip, and because § 87(2)(b) had not exited the train and it was the last stop. § 87(2)(b) raised the volume of his voice and began using profanities toward PO Lamour. PO Lamour could not recall exactly what § 87(2)(b) was saying, but he recalled that he used profanities during the conversation. § 87(2)(b) stood up and began gesturing toward PO Lamour with his hands at chest level. PO Lamour described his tone as boisterous. SGT Granahan entered the train car one door down from PO Lamour. SGT Granahan spoke with § 87(2)(b) inside the car. SGT Granahan told § 87(2)(b) “We simply asked you to step off the train, the only thing that you had to do was to step off and we will talk to you.” § 87(2)(b) continued to say in a very loud voice that he was being stopped because he was black. § 87(2)(b) never explained why he was on the train, nor why he did not want to get off. PO Honeywell and PO Gonell were standing on the platform. § 87(2)(b) stepped off of the train car after PO Lamour requested that he step off the train car numerous times. Neither SGT Granahan nor PO Lamour pulled § 87(2)(b) off of the train car.

§ 87(2)(b) refused to give PO Lamour his identification, stating that he “didn’t have to give them anything.” PO Lamour informed § 87(2)(b) that he was going to place handcuffs on him. PO Lamour explained to § 87(2)(b) that he was not under arrest, but that they were handcuffing him for their safety. PO Lamour decided to place handcuffs on § 87(2)(b) because § 87(2)(b) looked “as though he was going to fight.” § 87(2)(b) gestured his hands at chest level. PO Lamour based this belief on § 87(2)(b)’s use of profanities and his hand gestures. Neither SGT Granahan nor PO Lamour pushed § 87(2)(b) in to a subway column. § 87(2)(b) did not resist PO Lamour’s attempt to handcuff him. PO Lamour patted the bulge on his hip. PO Lamour asked § 87(2)(b) what was on his hip. § 87(2)(b) responded, “It is my fucking cellphone.” PO Lamour did not pat anywhere else on § 87(2)(b). PO Lamour did not lift up § 87(2)(b)’s sweater to see the object. PO Lamour asked § 87(2)(b) if he had identification. § 87(2)(b) stated that it was in his left front pants pocket. PO Lamour removed it from his pocket. The card was loose and was not in a wallet. PO Lamour wrote down his information. PO Lamour removed the handcuffs and returned § 87(2)(b)’s identification, informing him that they were going to use his information to fill out a report regarding the incident. § 87(2)(b) asked PO Lamour and SGT Granahan for their names and badge numbers. PO Lamour showed § 87(2)(b) his badge, but did not respond verbally. PO Lamour did not see which direction that § 87(2)(b) went after the interaction. PO Lamour got on a southbound train after their interaction.

Regarding the Stop, Question, and Frisk Report, PO Lamour did not know whose signature appeared under the heading of supervisor. PO Lamour checked “actions indicative of casing” because § 87(2)(b) was walking as though he was going to walk through the train cars illicitly, and in his experience, that is what “lush workers” do when searching for victims. “Lush workers” take razor blades and cut open people’s pockets to obtain their goods while they sleep on the train. It is a violent crime, because the perpetrators have razor blades and if the victim awakes, it could lead to violence. PO Lamour checked “actions indicative of being a look-out” for the same reason that he checked the actions indicative of casing. PO Lamour checked the box, “furtive movements” because § 87(2)(b) shielded his body from PO Lamour, and because he placed his hand over his sweater where the bulge was. PO Lamour marked the box, “actions indicative of committing a violent crime,” because he was about to walk through the train doors as he had seen “lush workers” do.

Subject Officer: SGT MICHAEL GRANAHAN

- § 87(2)(b) old, white, male, 5'9", 185 lbs., brown hair, and blue eyes.
- SGT Granahan worked from 9:15 p.m. to 6:12 a.m. on February 21, 2012 with PO Alazrake and was assigned as the patrol supervisor. SGT Granahan was in uniform and was assigned to marked police vehicle #2127.

Memo Book:

At 11:57 p.m. performed a walk through inspection of the Main Street Station. At 12:05 a.m. one male stopped on the northbound platform in the Main Street Station. At 12:17 a Stop, Question, and Frisk Report was prepared by PO Lamour for Criminal Possession of a Weapon—male black refused to step off train, was explained reason of stop (encl. D 1-3).

CCRB Statement:

SGT Michael Granahan was interviewed at the CCRB on May 24, 2013 (encl. D 4-5).

On February 21, 2013 at approximately 12:05 a.m., SGT Granahan performed a walk through inspection of the Main Street 7 train station. SGT Granahan was accompanied by PO Lamour and other officers, the identities and number of which SGT Granahan could not recall. When SGT Granahan arrived on the northbound platform, the 7 train was already in the station. After being in the station for approximately five minutes, SGT Granahan looked inside of a train car and saw § 87(2)(b) sitting nearby. SGT Granahan could not recall what § 87(2)(b) was wearing, nor could he recall specifically what § 87(2)(b) was doing. SGT Granahan did not see § 87(2)(b) engage in suspicious activity. SGT Granahan did not intend to stop § 87(2)(b) at this time and he walked to the other end of the train car. After approximately one to two minutes, SGT Granahan observed PO Lamour standing on the platform where the platform meets the train speaking to § 87(2)(b). PO Lamour asked § 87(2)(b) to step off of the train. SGT Granahan entered the train car and approached § 87(2)(b) to assist PO Lamour, as § 87(2)(b) verbally refused to leave the train car. SGT Granahan could not recall exactly what § 87(2)(b) said to refuse, but he said something like "I am not going to get off the train. What did I do?" SGT Granahan stood to the right of § 87(2)(b) and PO Lamour was to the left of § 87(2)(b) but at the train doors. At this time, SGT Granahan did not know why PO Lamour was stopping § 87(2)(b). SGT Granahan subsequently learned that PO Lamour suspected § 87(2)(b) of Criminal Possession of a Weapon. SGT Granahan did not know why PO Lamour suspected that § 87(2)(b) had a weapon. SGT Granahan never saw a bulge on § 87(2)(b)'s hip area. SGT Granahan did not say to § 87(2)(b) "If you do not get off this train, I will take you off of this train," nor did he hear PO Lamour state this. SGT Granahan did not pull § 87(2)(b) off of the train, nor did he physically compel § 87(2)(b) to get off the train. § 87(2)(b) exited the train of his own volition after being asked numerous times.

When § 87(2)(b) got off of the train, he had his hands in his pockets. SGT Granahan and PO Lamour asked § 87(2)(b) to take his hands out of his pockets several times. § 87(2)(b) did not remove his hands from his pockets until he was handcuffed. SGT Granahan could not recall if his hands were in his jacket pockets or his pants pockets. § 87(2)(b) began to speak loudly and use profanities and to proclaim his innocence. SGT Granahan did not recall what specifically § 87(2)(b) was saying. PO Lamour asked § 87(2)(b) to provide his identification. SGT Granahan, at that time, did not know why PO Lamour was asking to see his identification. SGT Granahan could not recall if § 87(2)(b) provided his identification at that time. PO Lamour handcuffed § 87(2)(b). SGT Granahan did not command PO Lamour to handcuff § 87(2)(b) but stated that he did fear for his safety as § 87(2)(b) refused to comply with commands and because he was combative. SGT Granahan suspected that § 87(2)(b) had a weapon when he refused to remove his hands from his pockets, as SGT Granahan did not know what he had in his pockets. § 87(2)(b) resisted being handcuffed by making his body rigid. SGT Granahan

held § 87(2)(b) and assisted PO Lamour in placing his hands behind his back. PO Lamour placed the handcuffs on § 87(2)(b)'s wrist. SGT Granahan never pushed § 87(2)(b) against a pole and he never saw PO Lamour do that. § 87(2)(b) was not under arrest at the time the handcuffs were placed on him. PO Lamour patted § 87(2)(b)'s waistband. SGT Granahan did not see PO Lamour place his hands inside of § 87(2)(b)'s pockets, nor did SGT Granahan place his hands in § 87(2)(b)'s pockets. SGT Granahan did not see anything on § 87(2)(b)'s waistband at any time during the interaction and he did not know why PO Lamour frisked his waistband. The handcuffs were removed from § 87(2)(b) and the information from his identification was taken down for the Stop, Question, and Frisk Report. SGT Granahan could not recall when or how PO Lamour obtained § 87(2)(b)'s identification. § 87(2)(b) asked for SGT Granahan's name and badge number. SGT Granahan verbally told § 87(2)(b) his name and badge and he pointed at his badge on his chest.

The other officers on the scene did not approach § 87(2)(b) at any time. The other officers on the scene did not interact with § 87(2)(b) at any point in this encounter. SGT Granahan instructed PO Lamour to fill out a Stop, Question, and Frisk Report regarding the incident, but he did not sign the Stop, Question, and Frisk Report. SGT Granahan did not subsequently learn why PO Lamour suspected § 87(2)(b) of possessing a weapon.

Witness Officer: PO DEZERIA HONEYWELL

- § 87(2)(b) old, black, female, 5'5", 150lbs., black hair, and brown eyes.
- PO Honeywell was assigned to transit patrol with PO Gonell and PO Lamour from 9:30 p.m. to 6:05 a.m. PO Honeywell was dressed in uniform and was not assigned to a motor vehicle.

Memo Book:

PO Honeywell performed a patrol at Flushing Main Street 7 train station from 12:00 a.m. to 12:30 a.m. (encl. D 12-15).

CCRB Statement:

PO Honeywell was interviewed at the CCRB on June 6, 2013 (encl. D 16-17).

On February 21, 2013, at approximately 12:00 a.m., PO Honeywell was patrolling the subway platform at Main Street in Flushing. PO Honeywell was performing the patrol with PO Gonell, PO Lamour, and SGT Granahan. SGT Granahan was not with PO Honeywell the rest of the tour, and he only assisted with this patrol. PO Honeywell was also accompanied by other officers, who she could not remember. PO Honeywell could not recall how many officers were on the platform. While conducting the patrol, PO Honeywell heard loud voices which drew her attention to PO Lamour, SGT Granahan, and § 87(2)(b). PO Honeywell could not make out the words of the voices. PO Honeywell approached and saw that § 87(2)(b) was handcuffed and that PO Lamour was speaking to him. PO Honeywell saw numerous other officers in the vicinity, but she could not recall who they were nor how many. PO Honeywell could not hear what was being said between the officers and § 87(2)(b). PO Honeywell did not see the officers obtain § 87(2)(b)'s identification. PO Honeywell did not see § 87(2)(b) get frisked. PO Honeywell saw § 87(2)(b) be released from the handcuffs. PO Honeywell did not hear § 87(2)(b) request the officers' name and badge number, nor was she asked for her name and badge number. PO Honeywell did not interact with § 87(2)(b) at all. PO Honeywell did not see § 87(2)(b) before the stop. PO Honeywell did not know where § 87(2)(b) went after the interaction. PO Honeywell continued the platform patrol.

Witness Officer: PO EDWIN GONELL

- § 87(2)(b) *old, Hispanic, male, 6'1", 195lbs., black hair, and brown eyes.*
- *On February 21, 2013, PO Gonell was assigned to patrol the 7 Train from 74th Street to Main Street with PO Honeywell and PO Lamour from 9:30 p.m. till 6:05 a.m. PO Gonell was dressed in uniform and was not assigned to a motor vehicle.*

Memo Book

PO Gonell performed a patrol at the Flushing Main Street 7 train station from 12:00 a.m. to 12:30 a.m. (encl. D 18-20).

CCRB Statement

PO Gonell was interviewed at the CCRB on June 12, 2013 (encl. D 21-22)

On February 21, 2013, at approximately 12:00 a.m., PO Edwin Gonell was accompanied by SGT Michael Granahan, PO Garry Lamour, and PO Dezeria Honeywell to perform transit patrol. PO Gonell could not recall if any other officers were performing this patrol with him. PO Gonell explained that the type of patrol that they were performing, a TOMS, required that the officers spread out along the platform and that the sergeant stops in the middle of the platform near the conductor of the train. The sergeant requests that the conductor of the train open the doors and hold the train in the station as the officers perform their inspection. On this date they were specifically looking for "lush workers" or criminals who cut open the pockets of sleeping passengers to steal the contents of the pocket. PO Gonell was at the Flushing-bound side of the train. The station has a bend and does not allow for visibility of the entire train car from one end to the other. PO Gonell began conducting his inspection. As he began walking toward the Manhattan bound side of the train, PO Gonell saw PO Honeywell, PO Lamour, and SGT Granahan standing around § 87(2)(b) who was in handcuffs. PO Gonell did not hear or see any commotion, nor did he hear what led to § 87(2)(b) being handcuffed. SGT Granahan was standing approximately five feet from the handcuffed § 87(2)(b). PO Gonell did not see SGT Granahan speaking with § 87(2)(b). PO Gonell did not remember what § 87(2)(b) said. PO Gonell did not see § 87(2)(b) before he was stopped by PO Lamour. PO Gonell did not see § 87(2)(b) get frisked. PO Gonell did not know where § 87(2)(b) went after he was released from his handcuffs. PO Gonell did not know why § 87(2)(b) was stopped, nor did he learn subsequently.

Witness Officer: PO CHRISTOPHER ALAZRAKI

- § 87(2)(b) *old, white, male, 5'8", 190lbs, brown hair, and brown eyes.*
- *PO Alazraki was assigned to be the sergeants operator with SGT Granahan from 9:30 p.m. to 6:05 a.m. He was dressed in uniform and was assigned to marked vehicle 2127.*

Memo Book

At 12:00 a.m. , PO Alazraki started a patrol of the platform and train at the Main Street Flushing 7 train station. At 12:30 a.m. he resumed patrol (encl. D23-24).

CCRB Statement

PO Alazraki was interviewed at the CCRB on September 11, 2013 (encl. D25-26).

On February 21, 2013, at approximately 12:05 a.m., while performing a patrol of the platform and train, PO Alazraki noticed SGT Granahan and PO Lamour stopping an individual on the train platform. PO Alazraki did not hear any screaming or yelling and his attention was drawn to § 87(2)(b) simply because he saw officers standing nearby. PO Alazraki had not seen § 87(2)(b) before the stop. PO Alazraki continued his patrol assignment and did not assist PO Lamour and SGT Granahan. He did not recall if § 87(2)(b) had been handcuffed when he saw

him, he only recalls that he was not alarmed and did not see a need to intervene. PO Alazraki did not observe PO Lamour frisk § 87(2)(b) and he could not recall anything specific about their interactions. PO Alazraki observed the interaction for less than a minute. PO Alazraki never learned what the stop was for nor did he see its resolution. PO Alazraki saw other officers in the vicinity, but these officers did not have any interaction with § 87(2)(b) that he had seen. PO Alazraki did not see § 87(2)(b) before the stop, and he did not see § 87(2)(b) engage in casing the area, acting as a lookout, nor did he see a suspicious bulge.

Witness Officer: LESLIE FRIDAY

- § 87(2)(b) *old, female, black, 5'5", 170lbs, black hair, and brown eyes.*
- *PO Friday was assigned to patrol 74th Street Roosevelt to Main Street Flushing on the 7 line with PO Lai from 9:30 p.m. to 6:05 a.m. She was dressed in uniform and was not assigned to a motor vehicle.*

Memo Book

At 12:00 a.m., PO Friday began TOMS at Main Street Flushing 7 train station. At 12:30 a.m., PO Friday's memo book was signed by SGT Granahan and she resumed patrol (encl. D27-30).

CCRB Statement

PO Friday was interviewed at the CCRB on September 11, 2013 (encl. D31-32).

On February 21, 2013, at approximately 12:05 a.m., PO Friday was conducting a patrol of the Main Street Flushing 7 train station when she heard raised voices, which drew her attention to PO Lamour, SGT Granahan, and § 87(2)(b). PO Friday could not recall whose voice she had heard nor what they had said. She saw the individual standing on the platform in handcuffs. PO Friday did not see what led up to the stop, she did not see § 87(2)(b) before the stop, and she never learned the disposition of the stop. As § 87(2)(b) was in handcuffs, she did not assist the officers. PO Friday did not see PO Lamour and SGT Granahan interact with § 87(2)(b) beyond a glimpse that he was handcuffed. She did not see PO Lamour frisk § 87(2)(b) and she was not nearby when he was released. PO Friday did not know what § 87(2)(b)'s demeanor was when he was stopped. PO Friday continued to perform the patrol of the train.

Witness Officer: PO HAIFENG LAI

- § 87(2)(b) *old, male, Asian, 5'9, 160lbs, black hair, and brown eyes.*
- *On February 21, 2013 PO Lai was assigned to transit patrol with PO Leslie Friday from 9:30 p.m. to 6:05 a.m. He was dressed in uniform and was not assigned to a motor vehicle.*

Memo Book

At 12:00 a.m PO Lai conducted a TOMS with SGT Granahan at the Main Street Flushing 7 train station. At 12:30 a.m. SGT Granahan signed his memo book (encl. D33-36).

CCRB Statement:

PO Lai was interviewed at the CCRB on September 13, 2013 (encl. D37-38).

On February 21, 2013, PO Lai was conducting a transit patrol at Main Street Flushing 7 train station. PO Lai had no independent recollection of the incident. PO Lai did not recognize § 87(2)(b) from his photograph taken at the CCRB. PO Lai did not recall any individual being handcuffed by PO Lamour and SGT Granahan. PO Lai did not see PO Lamour frisk or search § 87(2)(b) nor did he hear any individual ask for PO Lamour's and SGT Granahan's badge number. PO Lai did not hear any commotion or noise while conducting the patrol of the train and

platform. PO Lai did not recall if there was any crime pattern that officers were particularly looking for during the date of incident.

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of June 14, 2013 with regard to the incident (encl. E 1).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. B 3).

Subject Officers CCRB History

- SGT Michael Granahan has been a member of the service for nine years and there are no substantiated CCRB allegations against him (encl. B 1).
- PO Garry Lamour has been a member of the service for two years and there are no substantiated CCRB allegations against him (encl. B 2)

Conclusion

Allegations not Pled

§ 87(2)(b) PO Lamour, and SGT Granahan all agree that § 87(2)(b) refused to leave the train. § 87(2)(b) also stated that PO Lamour and SGT Granahan pulled him out of the train car and pushed him toward a column on the platform before handcuffing him. § 87(2)(g)

Identification of Subject Officers

PO Garry Lamour and SGT Michael Granahan both acknowledged interacting with § 87(2)(b)

Investigative Findings and Recommendations

Allegation A-Abuse of Authority: PO Garry Lamour stopped § 87(2)(b)

Allegation B-Abuse of Authority: SGT Michael Granahan stopped § 87(2)(b)

Allegation C-Abuse of Authority: PO Garry Lamour frisked § 87(2)(b)

It is not in dispute that SGT Granahan and PO Lamour stopped § 87(2)(b) and that PO Lamour frisked him. § 87(2)(b) stated that he walked to the train, sat down on the seat, and held in his hand two candy bars and a cellphone. He did not get up until PO Lamour and SGT Granahan approached him. § 87(2)(b) did not have anything on his waistband and he refused to leave the train car when asked to do so. PO Lamour and SGT Granahan physically removed § 87(2)(b) from the train and handcuffed him. PO Lamour then frisked him from head to toe.

PO Lamour testified that he observed § 87(2)(b) attempt to walk through the inner doors of the train car and that he changed direction and sat down when he noticed PO Lamour. § 87(2)(b) had a bulge on his hip which he blocked from PO Lamour's view. PO Lamour suspected that § 87(2)(b) had a weapon because of the bulge and because § 87(2)(b) attempted to cover and conceal the bulge with his jacket and body. On the Stop, Question, and Frisk Report, PO Lamour noted that § 87(2)(b) was engaging in actions indicative of casing the train

car, acting as a look-out, and of engaging in a violent crime, each of which were marked because § 87(2)(b) approached the doors between the train cars similar to lush workers. PO Lamour asked § 87(2)(b) to step off of the train car because he suspected § 87(2)(b) of being a lush worker and because of the undefined bulge. § 87(2)(b) yelled and cursed at PO Lamour and SGT Granahan and refused to get off the train. § 87(2)(b) gestured with his hands at chest level. PO Lamour handcuffed § 87(2)(b) on the platform and frisked the bulge. When PO Lamour asked § 87(2)(b) what the bulge was, § 87(2)(b) explained that it was a cellphone. PO Lamour did not investigate further, seemingly satisfied that the bulge was indeed a cellphone.

SGT Granahan observed § 87(2)(b) sitting in the train car prior to PO Lamour removing him and did not observe any suspicious activities. SGT Granahan stated that he walked to the end of the train car and did not see the beginning of the interaction and only began observing after he heard PO Lamour ask § 87(2)(b) to exit the train car. He did not see a bulge on § 87(2)(b)'s hip. SGT Granahan, in contradistinction to PO Lamour's statement, noted that § 87(2)(b) had his hands in his pockets and did not remove them until he was handcuffed.

The MTA Rules of Conduct Section 1050.9 (4) (encl. AA1-AA2) states that individuals can only use end doors to pass through trains in emergent circumstances or when directed to do so by an MTA employee or a police officer.

§ 87(2)(g)

An officer must have reasonable suspicion that a person has committed, is committing, or is about to commit a crime to stop that person. An officer's right to frisk someone for weapons arises when an officer reasonably suspects that he is in danger of physical injury. People v. Debour, 40 N.Y.2d 210, 223 (1976) (encl. A 1-13). Innocuous actions alone will not generate a founded suspicion of criminality. People v. Riddick, 70 A.D.3d. 260 (App. Div. 4th Dep't. 2010)(encl. A 14-17),

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation D-Abuse of Authority: PO Garry Lamour searched § 87(2)(b)

It is not disputed, by PO Lamour and § 87(2)(b) that PO Lamour removed § 87(2)(b)'s identification from his pocket while handcuffed either during or immediately after the frisk.

According to PO Lamour, § 87(2)(b) refused multiple requests for identification prior to being handcuffed. PO Lamour removed § 87(2)(b)'s identification to obtain his information for the Stop, Question, and Frisk Report. While § 87(2)(b) was handcuffed, PO Lamour asked him if he had identification and § 87(2)(b) replied that it was in his pocket. PO Lamour then reached into the pocket and removed the identification.

According to § 87(2)(b) during the frisk, PO Lamour asked § 87(2)(b) what was in his back pocket, to which § 87(2)(b) responded that it was his wallet. PO Lamour then reached into the pocket and removed the identification.

Patrol Guide Procedure 212-11 (encl. AC 1-4) states that a search of a person is permissible when a frisk has revealed something on a person which may be a weapon or when there is probable cause for an arrest. Notably, identification is not required to complete a Stop, Question, and Frisk Report.

The voluntariness of consent is evaluated by the surrounding circumstances, including whether the defendant is in custody and knows that he can refuse consent. People v. Keesler, 842 N.Y.S.2d 166, 167 (2007) (encl. AB 1-2)

§ 87(2)(g)

§ 87(2)(b)

Allegation E-Abuse of Authority: PO Garry Lamour refused to provide his name and shield number to § 87(2)(b)

Allegation F-Abuse of Authority: SGT Michael Granahan refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(b) stated that he requested PO Lamour's and SGT Granahan's badge numbers and names verbally. § 87(2)(b) further stated that SGT Granahan responded verbally that he could obtain their names and badge numbers, but that he did not bear his chest clearly or state his name and shield. § 87(2)(b) was ultimately able to accurately obtain SGT Granahan and PO Lamour's shield numbers by looking at their shields, and he gave no indication to the officers that he was having difficulty obtaining their information. SGT Granahan stated that he showed his shield and stated out loud his name and shield number. PO Lamour stated that he showed § 87(2)(b) his shield. PO Honeywell and PO Gonell did not hear such a request. § 87(2)(g)

§ 87(2)(b)

Team: One

Investigator: _____	<u>Lily Carayannis</u>	<u>September 25, 2013</u>
Signature	Print	Date

Supervisor: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date